



British Railways (Castlefield) Act 1980

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ELIZABETH II



1980 CHAPTER xvi

An Act to empower the British Railways Board to construct works and to acquire lands in the cities of Manchester and Salford in the metropolitan county of Greater Manchester; to confer further powers on the Board; and for other purposes. [30th June 1980]

WHEREAS—

(1) By the Transport Act 1962 the British Railways Board 1962 c. 46. (hereinafter referred to as “ the Board ”) were established:

(2) It is the duty of the Board under the Transport Act 1962 (inter alia) to provide railway services in Great Britain and, in connection with the provision of railway services, to provide such other services and facilities as appear to the Board to be expedient, and to have due regard, as respects all those railway and other services and facilities, to efficiency, economy and safety of operation:

(3) It is expedient that the Board should be empowered to construct in the cities of Manchester and Salford the works authorised by this Act and to acquire the lands in the said cities referred to in this Act:

(4) It is expedient that the other powers in this Act contained should be conferred upon the Board and that the other provisions in this Act contained should be enacted:

(5) Plans and sections showing the lines or situations and levels of the works to be constructed under the powers of this Act, and plans of the lands authorised to be acquired or used by this Act, and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the County Secretary of the Greater Manchester County Council, which plans, sections and book of reference are respectively referred to in this Act as the deposited plans, the deposited sections and the deposited book of reference:

(6) The purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title. 1. This Act may be cited as the British Railways (Castlefield) Act 1980.

Interpretation. 2.—(1) In this Act, unless there be something in the subject or context repugnant to such construction, the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have in relation to the relative subject-matter the same respective meanings and—

1845 c. 20.	“ the Act of 1845 ” means the Railways Clauses Consolidation Act 1845;
1863 c. 92.	“ the Act of 1863 ” means the Railways Clauses Act 1863;
1963 c. xviii.	“ the Act of 1963 ” means the British Railways Act 1963;
1967 c. xxx.	“ the Act of 1967 ” means the British Railways Act 1967;
1968 c. xxxiv.	“ the Act of 1968 ” means the British Railways Act 1968;
1969 c. xliii.	“ the Act of 1969 ” means the British Railways Act 1969;
1976 c. xxv.	“ the Act of 1976 ” means the British Railways Act 1976;
	“ the Board ” means the British Railways Board;

“the limits of deviation” means the limits of deviation shown on the deposited plans;

PART I
—cont.

“telegraphic line” has the same meaning as in the Telegraph Act 1878;

1878 c. 76.

“the works” means the works authorised by Part II (Works) of this Act.

(2) All directions, distances and lengths stated in any description of works shall be construed as if the words “or thereabouts” were inserted after each such direction, distance and length and distances between points on a railway shall be taken to be measured along the railway.

(3) Unless the context otherwise requires, any reference in this Act to a work identified by the number of such work shall be construed as a reference to the work of that number authorised by this Act.

3. The following Act and Part of an Act, so far as the same are applicable for the purposes and are not inconsistent with or varied by the provisions of this Act, are incorporated with and form part of this Act, and this Act shall be deemed to be the special Act for the purposes of the said incorporated enactments:—

Incorporation
of general
Acts.

The Act of 1845, except sections 7, 8, 9, 17, 19, 20, 22 and 23 thereof, and Part I (relating to the construction of a railway); except sections 13 to 19 thereof, of the Act of 1863:

Provided that—

(i) for the purposes of the provisions of the Act of 1845 and the Act of 1863, as incorporated with this Act, the expression “the company” where used in the said incorporated provisions means the Board;

(ii) the provisions of sections 18 and 21 of the Act of 1845, as incorporated with this Act, shall not extend to regulate the relations between the Board and any other person in respect of any matter or thing concerning which those relations are regulated in any respect—

(a) by the provisions of Part II of the Public Utilities Street Works Act 1950;

1950 c. 39.

(b) by the provisions of section 33 (For protection of gas, water and electricity undertakers) of the Act of 1963, as incorporated with this Act; or

(c) by the provisions of section 45 (For further protection of gas, water and electricity undertakers) of the Act of 1967, as incorporated with this Act.

PART I
—cont.

Application
of Part I of
Compulsory
Purchase Act
1965.

1965 c. 56.

1946 c. 49.

4.—(1) Part I of the Compulsory Purchase Act 1965 (except sections 4 and 27 thereof and paragraph 3 (3) of Schedule 3 thereto), in so far as it is applicable for the purposes of this Act and is not inconsistent with the provisions thereof, shall apply to the compulsory acquisition of land under this Act as it applies to a compulsory purchase to which Schedule 1 to the Acquisition of Land (Authorisation Procedure) Act 1946 applies and as if this Act were a compulsory purchase order under the said Act of 1946.

(2) In section 11 (1) of the Compulsory Purchase Act 1965 (which empowers the acquiring authority to enter on and take possession of land the subject of a notice to treat after giving not less than fourteen days' notice), as so applied, for the words "fourteen days" there shall be substituted the words "three months".

1845 c. 18.

(3) The Lands Clauses Consolidation Act 1845 shall not apply to the acquisition of land under this Act.

PART II

WORKS

Power to
make works.

5. Subject to the provisions of this Act, the Board may, in the lines or situations and within the limits of deviation shown on the deposited plans and according to the levels shown on the deposited sections, make and maintain the works hereinafter described with all necessary works and conveniences connected therewith:—

(Railways at
Castlefield)

In the metropolitan county of Greater Manchester—

Work No. 1 A railway (603 metres in length) commencing in the city of Manchester by a junction with the Manchester South Junction and Altrincham railway at a point 338 metres south-east of the junction of the said railway with the Liverpool and Manchester railway and terminating in the city of Salford by a junction with the last-mentioned railway at a point 10 metres north-east of the bridge carrying that railway over Irwell Street;

Work No. 2 A railway (237 metres in length) in the city of Salford commencing by a junction with the Liverpool and Manchester railway at a point 223 metres south-west of the bridge carrying the said railway over Irwell Street and terminating by a junction with the Manchester, Bolton and Bury railway at a point 17 metres north-east of the said bridge.

6.—(1) In this section—

PART II
—cont.

“ the Act of 1829 ” means the Act 10 Geo. 4 c. xxxv intituled
 “ An Act for enabling the Liverpool and Manchester Railway Company to make an Alteration in the Line of the said Railway, and for amending and enlarging the Powers and Provisions of the several Acts relating thereto ”;
 As to bridge over river Irwell and viaduct.

“ the Act of 1842 ” means the Act 5 & 6 Vict. c. cviii intituled
 “ An Act for better enabling The Liverpool and Manchester Railway Company to extend the Line of the said Railway, and for amending and enlarging the Powers and Provisions of the several Acts relating to such Railway ”;

“ the Act of 1878 ” means the London and North-western Railway (New Railways, &c.) Act 1878; 1878 c. clxxxii.

“ the bridge ” means the bridge over the river Irwell, partly in the city of Manchester and partly in the city of Salford, authorised by the Act of 1829;

“ the viaduct ” means so much of the viaduct (known as Viaduct No. 146) in the city of Salford, authorised by the Act of 1842 and paragraph (c) of subsection (12) of section 4 (Power to make railways and works according to deposited plans) of the Act of 1878, as lies within the limits of deviation.

(2) If the Board proceed with the construction of Work No. 1—

(a) they may hold, use and appropriate the bridge for the purposes of Work No. 1 and shall be relieved of the obligation to maintain the bridge for the purposes of the Act of 1829; and

(b) the following sections of the Act of 1829, so far as the same are applicable for the purposes and are not inconsistent with or varied by the provisions of this Act, shall continue to apply to the bridge:—

Section IX (Not to injure the Banks or Bed, or obstruct the Navigation of the River);

Section X (Regulating Height and Breadth of Arches);

Section XI (Any Damage done by the Company to the River to be made good by them);

Section XIV (Bridge and Cart Road to be kept in repair by the Company):

PART II
—cont.

Provided that the expressions “the said Company” and “the said Railway Company” where used in the said sections shall mean the Board.

(3) If the Board proceed with the construction of Works Nos. 1 and 2 or either of them—

(a) they may hold, use and appropriate such part of the viaduct as they may require for the purposes of Works Nos. 1 and 2, or either of them, and the Board shall be relieved of the obligation to maintain such part of the viaduct for the purposes of the Act of 1842 and the Act of 1878; and

(b) section IV (Prescribing the Mode of constructing the Railway over Upper Booth Street in Salford) of the Act of 1842, so far as the same is applicable for the purposes and is not inconsistent with or varied by the provisions of this Act, shall continue to apply to the viaduct:

Provided that the expression “the said Liverpool and Manchester Railway Company” where used in the said section shall mean the Board.

(4) Subject to subsections (2) and (3) of this section, all the powers and obligations conferred or imposed upon the Board—

(a) by the Act of 1829 in relation to the bridge;

(b) by the Act of 1842 or the Act of 1878 in relation to the part of the viaduct referred to in paragraph (a) of subsection (3) of this section;

shall cease to have effect.

(5) Any person who suffers loss by the extinguishment of any private right under this section shall be entitled to be paid by the Board compensation to be determined in case of dispute under and in accordance with the Land Compensation Act 1961.

1961 c. 33.

Temporary
stoppage of
roads and
footpaths.

7.—(1) The Board during and for the purpose of the execution of the works may temporarily stop up and divert and interfere with any road or footpath and may for any reasonable time divert the traffic therefrom and prevent all persons other than those bona fide going to or from any land, house or building abutting on the road or footpath from passing along and using the same.

(2) The Board shall provide reasonable access for persons on foot bona fide going to or from any such land, house or building.

(3) The Board shall not exercise the powers of this section without the consent of the highway authority, but such consent shall not be unreasonably withheld and any question as to whether such consent has been unreasonably withheld shall be referred to and settled by arbitration.

(4) The Board shall not exercise the powers of this section with respect to any road upon which public service vehicles are authorised by a road service licence to operate unless the Board give not less than seven days' previous notice to the traffic commissioners and to the operators of the public service vehicles so licensed.

(5) The exercise by the Board of the powers of this section in relation to any road or footpath shall not prejudice or affect the right of the Post Office under the Telegraph Acts 1863 to 1916 to maintain, inspect, repair, renew or remove telegraphic lines or break open that road or footpath for any of those purposes.

8.—(1) In this section—

“local authority” means the Greater Manchester County Council, the Manchester City Council or the Salford City Council;

Use of
sewers, etc.,
for removing
water.

“the water authority” means the North West Water Authority.

(2) The Board may use for the discharge of any water pumped or found by them during the construction of the works any available stream or watercourse, or any sewer or drain of the water authority or any local authority in or through whose area the works may be constructed or pass, and for that purpose may lay down, take up and alter conduits, pipes and other works and may make any convenient connections with any such stream, watercourse, sewer or drain within the limits of deviation:

Provided that—

- (i) the Board shall not discharge any water into any sewer or drain vested in or under the control of the water authority or any local authority except with the consent of the water authority or local authority and subject to such terms and conditions as the water authority or local authority may reasonably impose; and
- (ii) the Board shall not make any opening into any such sewer or drain save in accordance with plans reasonably approved by, and under the superintendence (if given) of, the water authority or local authority in whom the sewer or drain shall be vested.

(3) (a) Notwithstanding anything in section 11 (7) of the Rivers (Prevention of Pollution) Act 1951, the discharge of any water under the powers of this section into any stream as defined in that section shall be subject to the provisions of section 2 of that Act.

PART II
—cont.

1974 c. 40.

(b) On the coming into force of section 31 of the Control of Pollution Act 1974, paragraph (a) of this subsection shall cease to have effect and the said section 31 shall apply to, or to the consequence of, a discharge under the powers of this section into any relevant waters for the purposes of the said section 31 as if this section were excluded from the reference to any provision of a local Act mentioned in subsection (2) (b) (ii) of the said section 31 and as if no matter so discharged were trade or sewage effluent or other matter mentioned in subsection (2) (e) of the said section 31.

1976 c. 70.

(c) In the exercise of their powers under this section the Board shall not damage or interfere with the bed of any watercourse forming part of the main river of the water authority or the banks thereof within the meaning of section 116 of the Land Drainage Act 1976.

(4) The Board shall take all such steps as may reasonably be required to secure that any water discharged by them under the powers of this section shall be as free as may be reasonably practicable from any gravel, soil or other solid substance or matter in suspension.

(5) Any difference arising between the Board and the water authority or a local authority (as the case may be) under this section shall be settled by arbitration.

Power to deviate.

9. In the execution of any, or any part, of the works the Board may deviate from the lines or situations thereof shown on the deposited plans to the extent of the limits of deviation and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding 3 metres upwards and 3 metres downwards or to such further extent as may be found necessary or convenient and as may be sanctioned by the Minister of Transport.

Incorporation of provisions relating to works.

10. Subject to the provisions of this Act, the following provisions of the under-mentioned Acts are incorporated with, and form part of this Part of, this Act:—

The Act of 1963—

Section 14 (Power to make agreements with road authorities);

The Act of 1968—

Section 11 (Underpinning of houses near works) except the proviso to subsection (5) thereof:

Provided that the Board shall, so far as is reasonably practicable, so exercise the powers conferred by the said section 11 of the Act of 1968 as not to obstruct or render less convenient the access to any telegraphic line belonging to, or used by, the Post Office.

PART III

LANDS

11.—(1) Subject to the provisions of this Act, the Board may enter upon, take and use such of the lands delineated on the deposited plans and described in the deposited book of reference, except the Manchester lands as defined in section 12 (Compulsory acquisition of rights over lands) of this Act, as they may require for the purposes of the works or for any purpose connected with or ancillary to their undertaking.

(2) Subject to the provisions of this Act, the Board may enter upon, use and appropriate so much of the subsoil and under-surface of any public street, road, footway or place delineated on the deposited plans and described in the deposited book of reference as shall be necessary for the purposes mentioned in subsection (1) of this section without being required to purchase the same or any easement therein or thereunder or to make any payment therefor.

12.—(1) In this section—

“ the Act ” means the Compulsory Purchase Act 1965;

“ the Manchester lands ” means the lands delineated on the deposited plans and described in the deposited book of reference and therein numbered 1, 2, 7 and 8 in the city of Manchester;

“ new rights ” in relation to any land means easements or other rights over such land which are not in existence at the passing of this Act.

Compulsory
acquisition
of rights
over lands.
1965 c. 56.

(2) The Board may, for the purpose of constructing, maintaining, altering, renewing and using the works, purchase compulsorily such new rights as they may require over—

(a) any of the lands which may be acquired under section 11 (Power to acquire lands) of this Act instead of acquiring those lands under that section; and

(b) the Manchester lands.

(3) The Act, as applied by this Act, shall have effect with the modifications necessary to make it apply to the compulsory purchase of new rights under subsection (2) of this section as it applies to the compulsory purchase of land so that, in appropriate contexts, references in the Act to land are read as referring, or as including references, to the new rights or to land over which the new rights are, or are to be, exercisable, according to the requirements of the particular context.

(4) Without prejudice to the generality of subsection (3) of this section, in relation to the purchase of new rights in pursuance of subsection (2) of this section—

(a) Part I of the Act shall have effect with the modifications specified in Schedule 2 to the Act of 1976 and as if for

PART III
—cont.

the references in that schedule to the Act of 1976 there were substituted references to this Act;

- (b) the enactments relating to compensation for the compulsory purchase of land shall apply with the necessary modifications as they apply to such compensation.

Extinction or suspension of private rights of way.
1965 c. 56.

13.—(1) All private rights of way over any land which may be acquired compulsorily under this Act shall be extinguished on the acquisition of the land, whether compulsorily or by agreement or on the entry on the land in pursuance of section 11 (1) of the Compulsory Purchase Act 1965, as applied by this Act, whichever is sooner.

(2) All private rights of way over any land of which the Board may take temporary possession under this Act shall be suspended and unenforceable against the Board for so long as the Board shall remain in lawful possession thereof.

1961 c. 33.

(3) Any person who suffers loss by the extinguishment or suspension of any right under this section shall be entitled to be paid by the Board compensation to be determined in case of dispute under and in accordance with the Land Compensation Act 1961.

Period for compulsory purchase of lands and rights over lands.

14. The powers of the Board for the compulsory purchase of the lands and rights over lands which they are authorised by this Act to acquire shall cease on 31st December 1985.

Incorporation of provisions relating to lands.

15. The following provisions of the under-mentioned Acts are incorporated with, and form part of this Part of, this Act:—

The Act of 1963—

Section 19 (Correction of errors in deposited plans and book of reference); and

Section 28 (As to cellars under streets not referenced);

The Act of 1967—

Section 15 (Acquisition of part only of certain properties);

The Act of 1969—

Section 12 (Disregard of recent improvements and interests).

PART IV

PROTECTIVE PROVISIONS

Incorporation of protective provisions.

16. The following provisions of the under-mentioned Acts are incorporated with, and form part of this Part of, this Act:—

The Act of 1963—

Section 33 (For protection of gas, water and electricity undertakers);

The Act of 1967—

PART IV
—cont.

Section 45 (For further protection of certain gas, water and electricity undertakers):

Provided that—

- (i) the definition of “undertakers” in paragraph (1) of the said section 33 of the Act of 1963 and in paragraph (1) of the said section 45 of the Act of 1967, as so incorporated, shall be construed as including a water authority, not only in their capacity as an authority authorised by an enactment to carry on an undertaking for the supply of water within their area but also in their capacity as the authority having the duties, within their area, imposed by section 10 of the Water Act 1973, and paragraph (b) of the definition of “apparatus” in the said sections 33 and 45 shall be construed accordingly; 1973 c. 37.
- (ii) for the purposes of the said section 33 of the Act of 1963 and section 45 of the Act of 1967, as so incorporated, the bridge and viaduct referred to in section 6 (As to bridge over river Irwell and viaduct) of this Act shall be deemed to form part of Works Nos. 1 and 2;
- (iii) in the said section 45 of the Act of 1967, as so incorporated—
 - (a) the reference in paragraph (2) thereof to section 11 (Underpinning of houses near works) of the Act of 1967 shall be construed as a reference to section 11 (Underpinning of houses near works) of the Act of 1968 as incorporated with this Act;
 - (b) the reference in paragraph (3) thereof to section 12 (Temporary stoppage of roads and footpaths) of the Act of 1967 shall be construed as a reference to section 7 (Temporary stoppage of roads and footpaths) of this Act;
 - (c) for the reference in paragraph (4) thereof to section 17 (Use of sewers, etc., for removing water) of the Act of 1963 as incorporated by section 13 (Incorporation of provisions of Act of 1963 relating to works) of the Act of 1967 there shall be substituted a reference to section 8 (Use of sewers, etc., for removing water) of this Act.

17. For the protection of the North West Water Authority the following provisions shall, unless otherwise agreed in writing between the Board and the authority, apply and have effect:— For protection of North West Water Authority.

(1) In this section, unless the context otherwise requires—

“the authority” means the North West Water Authority;

PART IV

—cont.

1976 c. 70.

“banks” has the same meaning as in the Land Drainage Act 1976;

“construction” includes placing and altering and, in relation to temporary works, includes removal;

“new, altered or substituted works” includes any works required for the protection of any sewer;

1936 c. 49.

“sewer” means a sewer within the meaning of the Public Health Act 1936 vested in or under the jurisdiction or control of the authority, and includes any manholes, ventilating shafts, pumps or other accessories belonging to or forming part of a sewer;

“specified work” means so much of Works Nos. 1 and 2 and of any work (whether temporary or permanent) forming part of, or constructed in connection with, any of those works, including the bridge and viaduct referred to in section 6 (As to bridge over river Irwell and viaduct) of this Act, as will or may—

(a) interfere with or affect, directly or indirectly, a watercourse; or

(b) be situated over or within 15 metres measured in any direction of, or (wherever situated) impose any load directly upon, any sewer;

and includes the construction, maintenance or renewal of any such work;

“watercourse” includes a main river and any other river and any stream, ditch, drain, cut, culvert, dyke, sluice, sewer (other than a public sewer within the meaning of the Public Health Act 1936 vested in or under the jurisdiction or control of the authority) or passage through which water flows and the banks thereof:

- (2) (a) No specified work shall be executed so as to diminish the width between the banks of any watercourse except with the consent in writing of the authority which consent shall not be unreasonably withheld;
- (b) In the execution (including maintenance) of the specified works the Board shall provide, to the reasonable satisfaction of the authority, such culverts and other drainage works as may be reasonably required for land drainage and the protection of watercourses;
- (3) The Board shall not commence the execution of any specified work until they shall have given to the authority two months' previous notice in writing of their intention to commence the same, by leaving such notice at the

principal office of the authority with plans as described in paragraph (8) of this section (in this section referred to as "the said plans"), and until the authority shall have signified their approval of the said plans:

PART IV
—cont.

Provided that such approval shall not be unreasonably withheld and if, within two months after the submission of the said plans, the authority have not signified to the Board their approval or disapproval thereof, they shall be deemed to have approved the said plans:

- (4) The Board shall comply with and conform to all reasonable orders, directions and regulations of the authority in the execution of any specified work and shall provide new, altered or substituted works in such manner as the authority shall reasonably require for the proper protection of, and for preventing injury or impediment to, any sewer or watercourse by reason of any specified work and shall save harmless the authority against all expenses to be occasioned thereby:
- (5) (a) The specified works and all such new, altered or substituted works shall be executed only in accordance with such plans as may be approved or be deemed to be approved by the authority as aforesaid or settled by arbitration, subject however to any modification of those plans from time to time agreed upon between the engineer of the Board and the engineer of the authority duly authorised for that purpose, and be executed to the reasonable satisfaction of the authority who shall be given reasonable notice of the date and time on and at which any new, altered or substituted works are to be commenced;
- (b) The Board shall indemnify the authority against all costs, charges and expenses which the authority may reasonably incur or have to pay or which they may sustain in the preparation or examination of plans:
- (6) When any such new, altered or substituted works shall be completed under the provisions of this section, the same shall thereafter be as fully and completely under the direction, jurisdiction and control of the authority as any sewer now or hereafter may be:
- (7) Nothing in this Act shall extend to prejudice, diminish, alter or take away any of the rights, powers or authorities vested or to be vested in the authority in relation to any sewer or watercourse but all such rights, powers and authorities shall be as valid and effectual as if this Act had not been passed:

PART IV
—cont.

- (8) The plans to be submitted to the authority for the purposes of this section shall be detailed plans, drawings, sections and specifications which shall describe the exact position and manner in which, and the level at which, any specified work is proposed to be executed and shall accurately describe the position of all sewers within the limits of deviation (for which purpose the authority shall allow the Board access to plans in their possession in order to enable the Board to obtain reliable information) and shall comprise detailed drawings of every alteration which the Board may propose to make in any sewer:
- (9) The authority may require such modifications to be made in the said plans as may be reasonably necessary to secure the sewers against interference or risk of damage and to provide and secure proper and convenient means of access to any sewer:
- (10) The Board shall indemnify the authority against all claims, demands, costs, expenses, damages or loss which may be made on or against the authority or which the authority may incur or have to pay or which they may sustain in consequence of the construction, maintenance or renewal of a specified work or of the failure or want of repair thereof or any subsidence caused by the construction of any specified work or in consequence of any act or omission of the Board, their contractors, agents, workmen or servants, whilst engaged upon the specified work:

Provided that—

- (i) the authority shall give to the Board reasonable notice of any such claim or demand as aforesaid and no settlement or compromise thereof shall be made without the agreement in writing of the Board; and
- (ii) nothing in this paragraph shall impose any liability on the Board with respect to any claim, demand, costs, expenses, damage or loss which is attributable to the act, neglect or default of the authority or their servants or agents:
- (11) If the Board in the execution of any specified work or any new, altered or substituted work alter, damage or in any way interfere with any sewer, the Board shall give to the authority full, free and uninterrupted access at all times to any such new, altered or substituted work or to any such sewer and every reasonable facility for the inspection, maintenance, alteration and repair thereof:

PART IV
—cont.

- (12) Notwithstanding the temporary stopping up or diversion of any road or footpath under the powers of section 7 (Temporary stoppage of roads and footpaths) of this Act, the authority shall be at liberty at all times to execute and do all such works and things in, upon or under any such road or footpath as may be reasonably necessary or desirable to enable them to inspect, repair, maintain, renew, remove or use any sewer which at the time of the stopping up or diversion was in that road or footpath:
- (13) In the exercise of the powers conferred on them by section 8 (Use of sewers, etc., for removing water) of this Act the Board shall not (without prejudice to their obligations under subsection (3) (c) of the said section 8) damage or interfere with the bed of any watercourse (other than a main river) or the banks thereof within the meaning of section 116 of the Land Drainage Act 1976:
- (14) It shall be lawful for an officer of the authority duly appointed for the purpose at any reasonable time to enter upon and inspect any specified work or any other work executed under the powers of this Act, for which purpose the Board shall allow to any such officer access over any other works or land of the Board:
- (15) The fact that any specified work has been executed in accordance with a plan approved or not objected to by the authority or to their satisfaction or in accordance with any directions or award of an arbitrator shall not relieve the Board from any liability under the provisions of this section:
- (16) As soon as reasonably practicable after the completion of the construction of a specified work the Board shall deliver to the authority a plan and section showing the position and level of that work as constructed and all new, altered or substituted works provided under this section:
- (17) Any difference arising between the Board and the authority under this section (other than a difference as to the construction of this section) shall be settled by arbitration.

1976 c. 70.

PART V
MISCELLANEOUS

18. The enactments specified in columns (1) and (2) of the Repeals Schedule to this Act are hereby repealed to the extent mentioned in column (3) of that schedule.

PART V
—cont.

Modification
of Town and
Country
Planning
Act 1971.
1971 c. 78.
S.I. 1977/289.

19.—(1) In this section—

“ the Order of 1977 ” means the Town and Country Planning General Development Order 1977;

“ Class XII development ” means development authorised by Article 3 of, and Class XII in Schedule 1 to, the Order of 1977 (which permit development authorised by private Act designating specifically both the nature of the development thereby authorised and the land on which it may be carried out).

(2) Subject to the provisions of subsection (3) of this section, in its application to development authorised by this Act, the planning permission granted for Class XII development shall have effect as if the authority to develop given by this Act were limited to development begun within 10 years after the passing of this Act.

(3) Nothing in subsection (2) of this section shall affect the carrying out of any development which consists of the alteration, maintenance, renewal or repair of the works authorised by section 5 (Power to make works) of this Act.

Arbitration.
1965 c. 56.

20. Where under this Act any difference (other than a difference to which the provisions of the Compulsory Purchase Act 1965, as applied by this Act, apply) is to be referred to or settled by arbitration, then such difference shall be referred to and settled by a single arbitrator to be agreed between the parties or, failing agreement, to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers.

Costs of Act.

21. All costs, charges and expenses of and incidental to the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Board and may in whole or in part be defrayed out of revenue.

SCHEDULE

Section 18.

REPEALS

Chapter (1)	Title or short title (2)	Extent of repeal (3)
10 Geo. 4. c. xxxv (1829).	An Act for enabling the Liverpool and Manchester Railway Company to make an Alteration in the Line of the said Railway, and for amending and enlarging the Powers and Provisions of the several Acts relating thereto.	In section VIII (Power to build Bridges over the River Irwell and over Water Street, Manchester), the entries relating to the bridge over the river Irwell. Section XII (Cart Road to be made on Bridge). In section XIV (Bridge and Cart Road to be kept in repair by Company), the words "and Cart Road" and the words "and also the said Cart Road".

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